



BEFORE THE FEDERAL MARITIME COMMISSION

Washington, D.C.

Docket No. 25-15

RECEIVED

July 29, 2025

Office of the Secretary
Federal Maritime Commission

Complainant:

Worldwide Nexus Logistics LLC
4200 NW 41 street, Suite 200
Doral, FL 33178
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Phone: (732)379-2525

Respondent:

Wallenius Wilhelmsen
300 Interpace Pkwy, Ste A300
Parsippany, NJ 07054
Phone: +1 201 307 1300

Respondents' team:

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COMPLAINT

I. PARTIES

1. Complainant, Worldwide Nexus Logistics, is a logistics provider organized and operating under the laws of Florida, USA, with a principal place of business at 4200 NW 41 Street, Suite 200 Doral, FL 33178.

2. Respondent, Wallenius Wilhelmsen, is a common carrier as defined by 46 U.S.C. § 40102(7), engaged in the ocean transportation of cargo for compensation and subject to the jurisdiction of the Federal Maritime Commission.

II. JURISDICTION

3. This Commission has subject matter jurisdiction pursuant to 46 U.S.C. §§ 41301 and 41302, and personal jurisdiction over Respondent under 46 U.S.C. § 41304.

4. The acts and omissions alleged herein occurred in connection with Respondent's operation as an ocean common carrier engaged in the transportation of cargo in the foreign commerce of the United States.

III. FACTUAL BACKGROUND

5. On or about December 19th, 2023, Complainant booked and shipped cargo consisting of roll-on/roll-off (RORO) units from Brunswick, GA and Galveston, TX, with a final destination San Antonio, Chile, via ocean transport contracted with Respondent. Contract number: NASA23-003

6. The cargo was routed to transit through Peruvian territory, in accordance with standard international shipping routes and manifest procedures.

7. Under the terms of the booking and standard maritime practice, Respondent was responsible for submitting all required in-transit documentation, including the Peruvian cargo manifest.

8. Respondent failed to submit the required in-transit cargo manifest, resulting in the seizure of the cargo by Peruvian customs authorities approximately 18 months ago.

9. As a direct result of Respondent's failure, the cargo was never released nor delivered to its final destination in Chile.

10. Despite repeated outreach and formal requests for explanation and remedy, Respondent has failed to provide any substantive response, compensation, or justification.

10A. Furthermore, Respondent initially acknowledged responsibility for the documentation failure and offered a settlement to compensate for the loss of cargo. However, Respondent subsequently and unilaterally withdrew its settlement offer without justification or explanation. This action, following Complainant's reliance on the offer and efforts to resolve the matter amicably, demonstrates further bad faith and constitutes an unreasonable business practice under 46 U.S.C. § 41102(c).

IV. CLAIM FOR RELIEF

11. Complainant alleges that the Respondent's failure to submit required manifest documentation, and its subsequent refusal to remedy the situation, constitutes an unjust and unreasonable practice in violation of 46 U.S.C. § 41102(c).

12. Complainant and its customers have incurred substantial financial harm, including loss of cargo, reputational damage, and commercial disruption. Until today we have only been advised via email by the carrier's attorney that the boats(3) have been confiscated by Peruvian authorities.

V. PRAYER FOR RELIEF

WHEREFORE, Complainant respectfully requests that the Federal Maritime Commission:

- A. Initiate an investigation into the acts and omissions of Respondent;
- B. Find that Respondent has violated 46 U.S.C. § 41102(c);
- C. Complainant respectfully requests that the Commission order reparations in the amount of \$240,902.90 representing the total losses incurred due to Respondent's violations of the Shipping Act, including but not limited to the value of the boats lost, shipping costs, and consequential damages.
- D. Provide such other and further relief as the Commission deems just and proper.

Respectfully submitted,

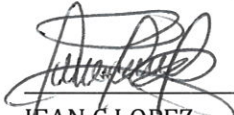
A handwritten signature in blue ink, appearing to read "Jean Lopez", with a stylized flourish at the end.

Jean Lopez
Director - Member
Worldwide Nexus Logistics
June 25th, 2025

Verification

Pursuant to 46 CFR §502.112, I, JEAN C LOPEZ, being duly sworn, depose and state that I am the DIRECTOR/MEMBER of WORLDWIDE NEXUS LOGISTICS LLC., the complainant in this proceeding, that I have read the foregoing complaint, and that the facts stated therein are true and correct to the best of my knowledge, information, and belief.

Executed on this 21 day of July, 2025

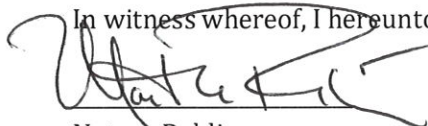

JEAN C LOPEZ

Notary Acknowledgment

State of Florida
County of Dade

On this 21 day of July, 2025 before me, the undersigned Notary Public, personally appeared [Your Full Name], known to me (or satisfactorily proven) to be the person whose name is subscribed to the foregoing complaint, and acknowledged that he/she executed the same for the purposes therein contained.

In witness whereof, I hereunto set my hand and official seal.


Notary Public

My Commission Expires

MARTHA RODRIGUEZ
NOTARY PUBLIC
MY COMMISSION
EXPIRES 8-21-2026
STATE OF FLORIDA
COMMISSION NUMBER FH 302886